Mr. Michael O. Foster
Director, Motor Vehicle Service Division
American Postal Workers Union, AFL-CIO
1300 L Street, NW
Washington, DC 20005-4128

Re: Q10V-4Q-C 16367308/HQTV20160209
Class Action
Washington DC 20260-4100

Dear Mike:

The parties met at Step 4 of the grievance-arbitration process to discuss the above referenced grievance. The dispute was initiated at Step 4 by the American Postal Workers Union (APWU). Time limits were extended by mutual consent.

The issue presented by the APWU is whether the Unites States Postal Service (USPS) implemented a new policy on April 1, 2016 regarding Department of Transportation (DOT) medical examinations based on new DOT standards. The components of this policy required Postal Vehicle Service (PVS) operators to be tested at the higher standard of interstate examination if the mail crosses state lines or boundaries, instead of the intrastate standard.

Federal Motor Carrier Safety Regulations normally require drivers who engage in interstate commerce to possess an interstate CDL. After self-certification to their state, as employees of the United States Postal Service, PVS drivers are exempt from the DOT interstate requirement while in the performance of their duties.

The parties agree to the USPS policy and instructions to employees, as follows:

> USPS drivers holding a CDL are required to self-certify to their state that they operate or expect to operate in "excepted interstate commerce" in accordance with 49 CFR part 383.71(b)(1)(ii) which will result in PVS drivers being exempt from the interstate requirements. Each state has its own procedure for completing the self-certification process, so USPS applicants/employees with an intrastate CDL should be directed to their local Department of Motor Vehicles or their state's equivalent for appropriate guidance. Additionally, these individuals are still bound by their state's medical requirements regarding intrastate CDL licensing.

A USPS driver excepted from the DOT interstate requirement, after self-certification as outlined above, will still be allowed to cross state lines in the course of performing their driving duties with the USPS.

The parties further agree the Postal Service will instruct the medical contract unit performing the Department of Transportation (DOT) medical examinations that all USPS drivers holding a CDL are excluded from the DOT interstate requirement, and the only CDL requirement for Motor Vehicle Service (MVS) positions is an intrastate CDL, provided the driver has self-certified to their state.

The parties agree that any future changes to the above policy which directly relate to wages, hours or working conditions will be done in accordance with Article 19 of the National Agreement.

Sincerely,

Rickey R. Dean
Manager
Contract Administration (APWU)
U.S. Postal Service

Date 05/15/2020

Michael O. Foster
Director, Motor Vehicle Service
American Postal Workers
Union, AFL-CIO

Date 05/15/2020